

GUIDELINES FOR THE ESTABLISHMENT OF PRIVATE TERTIARY INSTITUTIONS
IN KADUNA STATE

KADUNA STATE GOVERNMENT
MINISTRY OF EDUCATION

IN

COLLABORATION

WITH

MINISTRY OF HEALTH

2025

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FOREWORD

The State has recently been challenged by the proliferation of Private Tertiary institutions. Some of these institutions have genuine intention to complement Government Institutions in achieving the workforce requirement of the State in private establishment. Unfortunately, some have no idea about the requirement for establishing a Private Institution. This has led to a lot of public uproar on the activities of some sub-standard Private Institutions that enroll trainees and leave them halfway without certification.

The Guideline for establishing Private Institutions in Kaduna State was developed to provide adequate information for any individual or organization wishing to establish a Private Institution of higher learning. The guideline, if strictly followed, would sanitize the unnecessary proliferation of Private tertiary institutions, standardize the training across all the institutions and produce quality manpower. The guideline would be made available online for easy access. I therefore call on all prospective proprietors to make the best use of this document.

ACKNOWLEDGEMENT

The development of this document is a landmark achievement reflecting the commitment of the Kaduna State Government under the leadership of His Excellency, Mallam Nasir Ahmad el-Rufai, the Executive Governor of Kaduna State, to sanitize the proliferation of private institutions of higher learning and standardize the training of prospective workers.

I want to acknowledge the efforts of members of the committee that was saddled with the responsibility of developing this document and the energy expended to produce this short but concise document.

1.0 BACKGROUND

1.1 One of the objectives of the Education Policy in Kaduna State is to improve the quality of education and school systems across all levels through the transformation of education services, teacher education, management of

teachers, and funding of education facilities and infrastructure to produce learners that can compete globally.

1.2 To achieve our aspiration of improving standards and quality of instruction, it is vital that minimum standards are set to guide the establishment and operation of private tertiary institutions in the State.

2.0 JUSTIFICATION

2.1 Public-Private partnerships have become the norm in practically all fields of endeavor and the education sector has witnessed a huge growth in the number of private institutions at all levels. The demand for the establishment of private tertiary institutions is in response to the increasing number of students competing for spaces in our limited tertiary education and health institutions. Private institutions are necessary to complement government efforts in providing qualitative education at all levels.

2.2 The proliferation of these private institutions has led to the establishment of illegal schools, motivated by financial gain and the desperation of students to go beyond the senior secondary school to obtain higher qualifications. The Ministry is constantly receiving applications from private individuals expressing their interest to establish private tertiary institutions in the State. Some institutions are in existence and operating without the consent of the Ministries of Education and Health. This is due to the absence of standards to regulate and control the rampant establishment of the institutions.

2.3 Establishment of Tertiary Institutions in Nigeria is governed by the relevant regulatory bodies e.g., Federal Ministry of Education, the National Universities Commission (NUC), the National Board for Technical Education (NBTE), and the National Commission for Colleges of Education (NCCE). The growth in the number of tertiary institutions in our State has not been matched by the fulfillment of minimum standards. To achieve our aspiration of providing qualitative education at all levels, tertiary institutions must meet certain requirements and obtain approval to operate as bona fide institutions.

3.0 SECTION A: PROCEDURE FOR APPLICATION (NEW INSTITUTIONS)

3.1 PROCEDURE FOR APPLICATION

Any individual or organization wishing to establish a private tertiary institution shall apply online to the Commissioner, Ministry of Education, Kaduna State, State Secretariat Complex, Independence Way, Kaduna, and the Commissioner of Health in the case of Health-related institutions. The application shall be accompanied by the following documents (to be uploaded):

- i. Need Assessment Report, showing the type of human resources the institution plans to produce for the economy.
- ii. Academic Plan describing the academic structure of the institution, its Vision and Mission, profile and experience of the promoters, management team, and sources of funds for capital and recurrent expenditure.
- iii. The proposed Structure of Administration and Management of the institution, including an organogram showing how the various components of the institution shall relate to each other. This shall also include the names, qualifications, and cognate work experience of the principal officers and Heads of Departments.
- iv. Comprehensive List of Proposed Academic and Non-Academic Staff with qualifications, specializations, and work experience for each proposed staff, and the nature of employment (full-time or part-time) at each category of staff and duties to be performed.
- v. The proposed School Curricula for each programme.
- vi. Strategic Plan for the programmes/training. These shall have evidence of potential for creativity, and innovation and be linked with industry and the market.

vii. List of Physical Facilities, such as classrooms, laboratories, library, offices, sanitary facilities, etc. that are available for the proposed programmes. The dimensions of each facility and student capacity for each proposed programme shall also be stated.

viii. Evidence of Ownership of the Land (Certificate of Occupancy - C of O) or a five to ten years Lease arrangement for the proposed school. Clear indications must be shown of moving to the institution's permanent site within a period of not more than 10 years.

ix. Certificate of Incorporation by the Corporate Affairs Commission.

x. The proprietor of the institution is to present Legal Backing for the establishment.

xi. Signed Memorandum of Understanding (MoU) with relevant institutions for students' practical training and experience acquisition.

3.1.2 The submitted application shall be considered by the Ministry of Education/Health based on merit. For satisfactory applications, the Ministry with relevant MDAs shall:

i. Arrange and conduct an assessment visit to the proposed institution for verification of all claims.

ii. At the end of the visit, the team shall report its findings and recommendations for approval or otherwise for the establishment of the institution.

iii. If the approval is granted, the proprietor shall be communicated within a month from the day of the visit.

iv. If the approval is not granted, the proprietor of the institution shall be communicated accordingly, highlighting the reasons for disapproval of the request.

v. In a situation where approval is not granted and later a proprietor makes up the identified deficiencies, the proprietor shall inform the Ministry within six

months; giving details of the corrections made, and request the Ministry to reconsider the application.

vi. Upon receipt of such a request from a proprietor, the Ministry shall reassess and treat such a request within three months.

4.0 SECTION B: PROCEDURE FOR APPLICATION BY EXISTING INSTITUTIONS THAT HAVE NOT REGISTERED

4.1 For schools that exist already in the State without fulfilling the requirements the following shall apply:

- i. Apply for Consent from the Ministry of Education and Certification from the Ministry of Health (where necessary).
- ii. Undergo inspection by the Ministry of Education. In the case of Health-related Institutions, a joint inspection by the Ministry of Education and Health.
- iii. The process of the registration as outlined in Section A shall be followed as it applies to the establishment of a new institution.

5.0 SECTION C: REQUIREMENTS FOR THE ESTABLISHMENT OF PRIVATE TERTIARY INSTITUTIONS:

- i. Name and Address of Institution: The instrument of the institution shall provide its name and a definite address. The name shall NOT be the same or closely similar (with a tendency of being confused) to an existing Institution in the State.
- ii. Instrument of Establishment: The institution shall be established by a Legal Instrument, (Registration with Corporate Affairs Commission in the case of Private/Non-Governmental Organization.) It shall be a Body Corporate with perpetual succession that can sue and be sued in a competent Court of Law.
- iii. Curriculum: There shall be clear curricula for the institution's programme(s) as provided by the regulatory body in respect of all courses to be offered by the institution and it shall be broken down into syllabi.
- iv. Funding and Financial Capacity: The institution shall show visible and verifiable source(s) of funding. The source shall be able to sustain the institution for at least one calendar year without recourse to its tuition fees.

- v. Ownership and Responsibility: There shall be a human representative in the ownership structure that legal references can be made to. She/he shall have a definite address and contact details.
- vi. Security of the Institution: To ensure the security and safety of students and staff of the proposed institutions, the following measures shall be considered:
- a. The site of the institution must be properly fenced.
 - b. There shall be provided adequate security personnel to work day and night.
 - c. There shall also be fire-fighting equipment(s) or an office with personnel for that purpose duly certified by the relevant MDA.
- vii. The institution shall provide some Recreational Facilities e.g., Football field, Volleyball court, Basketball court, Badminton Court or evidence of a Memorandum of Understanding with another Institution for use of its facilities, duly certified by the relevant MDA.
- viii. The institution must operate in conformity with operational guidelines enshrined by regulatory bodies for courses offered therein.
- ix. The institution must have an Online Platform for students' admission, registration, and general administrative purposes.
- x. The Ministry of Education shall issue a Letter of Consent to operate while the Ministry of Health certifies all Health-related institutions, including the Environmental Health Certificate, certifying its nuisance-free status.

5.1 ORGANIZATIONAL CHAIN OF COMMAND, FLOW OF AUTHORITY & CONTROL

The institution should have a semblance of the following chain of command:

- POLICY MAKING BODY (Governing Council/Board of Trustees)
- HEAD OF MANAGEMENT (VC/Rector/Provost/Principal)
- CORPORATE UNITS (Faculties/Directorates/Colleges/Schools)
- CORPORATE SUB-UNITS (Departments, Units)

5.2 QUALIFICATION OF HEAD OF THE INSTITUTION:

The Head of the Institution shall have the following requirements:

- i. Minimum of a Master's degree or Ph.D. in a related field or object of the institution.
- ii. Teaching qualification and TRCN (Teachers Registration Council of Nigeria) Certified.
- iii. At least five years of cognate experience.
- iv. For health training institution – Tutorials training in a related field/Post-graduate Diploma in Education.
- v. Be a person of proven integrity in his/her previous place of work.

5.3 PHILOSOPHY AND OBJECTIVES OF THE INSTITUTION

The proposed institution shall only be established based on clearly defined philosophy and objectives.

6.0 STANDING AND STATUTORY COMMITTEES

The institution shall have in place Standing and Statutory Committees. The functions of each of these committees must be clearly spelled out in the standard operating manual of the institution. The committees and their respective functions are as follows:

- i. Governing Council/Board of Trustees: The institution shall appoint a Governing Council or Board of Trustees as the apex decision-making body of the institution. The composition of the Board should include representatives of the proprietor, education authority, employers, and professional registration councils/associations related to the discipline(s) offered by the institution and public interest. The secretary should be the Registrar of the institution.
- ii. Senate/Academic Board/Committee: There shall be an Academic Board Committee whose main function shall be the management of all academic matters. The composition shall include the Head of the Institution (i.e., VC,

Rector, Provost, or Principal as the case may be) as Chairman, the Directors of Schools, Heads of Academic Departments, and the Librarian as members. The Registrar of the institution shall be its Secretary.

iii. Management Committee: This is appointed to run the Institution. The Vice-Chancellor, Rector, or Provost/Principal acts as the Chief Academic and Administrative Officer of the Institution together with other principal officers, i.e., Bursar, Registrar, Librarian, and the head of each academic Department or other nomenclature as the case may be.

iv. Admissions Committee: There shall be an admission committee whose responsibility is to develop criteria for admissions into the institution and conduct admission exercises. There shall be an admission policy incorporated into the student's handbook of the institution.

v. Students' Disciplinary Committee: This committee shall oversee the conduct of enrolling students with details of offenses and punishments as provided in the relevant book of the institution.

vi. Staff Appointments, Promotions, and Discipline Committee: This standing subcommittee of Governing Council/Board shall be vested with responsibilities for staff recruitment, promotion, and discipline.

vii. Staff Welfare Committee: This Committee shall be responsible for staff motivation and wellbeing.

viii. Grievances/Redress Committee: This shall be a committee to address complaints and related issues raised by the Community members or Parents of students in respect of the operation of the institution.

7.0 ENVIRONMENT AND PHYSICAL FACILITIES

7.1 ENVIRONMENT OF THE INSTITUTION

The site and size of the proposed institution (landmass) shall be conducive to learning. The environment shall specifically have:

i. An easily accessible road.

- ii. Good communication links, for example, postal address, email, contact number etc.
- iii. Provision for future expansion and development.
- iv. Provision for maintenance and general sanitation.
- vi. Provision of adequate parking space for staff, students, and visitors.
- vii. All institutions should have a certified Master plan which shall be submitted to the relevant state agency for necessary action.

7.1.2 All institutions should submit a copy of the environmental impact assessment for the proposed site. Arrangements having to do with the environment of the institution shall follow the Kaduna State Environmental and related Laws.

7.2 PHYSICAL FACILITIES

The institution shall make provisions for the following:

- i. Laboratory, Workshop, and Demonstration Room: There shall be adequately equipped as recommended by the regulatory bodies.
- ii. Library: There shall be a Library equipped/stocked with books, [hard copies and electronic], Journals, Internet connectivity, resources, and operational staff.
- iii. Classroom/Lecture Theatres: There shall be an adequate number of classroom/lecture halls/theaters for all the programmes. The classroom shall accommodate at least forty (40) students at a time and shall be available for each programme. All classroom/lecture halls and theaters shall be adequately furnished.
- iv. The classrooms shall be furnished and provided with adequate natural ventilation (through or cross ventilation) and well illuminated. Each class shall have a minimum of 6.2m x 9.5m and 3.9m in height.
- v. Hostel: There shall be separate female and male hostels.
- vi. Utilities: There shall be a regular source of potable water and power supplies to the premises and in all buildings making up the institution.

vii. Toilet: There shall be the provision of an adequate number of toilet facilities for both staff and students as provided by the regulatory bodies.

7.3 INSTITUTIONAL CLINIC

i. The proposed institution shall make provision for an operational and sustainable healthcare delivery system maintained for both staff and students (clinic/dispensary). The clinic shall also serve as a training point, especially for Health-related institutions.

ii. The institution shall also maintain First Aid Box(es) at strategic locations and be registered with health facilities on a retainership basis.

iii. For the introduction of the Health Insurance Scheme, Kaduna State Contributory Health Management Agency (KADCHMA) may be engaged for both staff and students.

8.0 STAFF REGULATIONS AND ADMINISTRATIVE FACILITIES

8.1 ADMINISTRATIVE BLOCK

The administrative block is the building comprising the Reception, Vice-Chancellor's/Rector's/Provost's/Principal's Office, Director's Office, Account Office, Superintendent's Office, and Administrative Officers. A Registry shall be provided for the institution. The registry shall be categorized into open and secret registries.

8.2 OFFICES FOR STAFF

Offices shall be made available for staff. The offices may be shared by intermediate/junior staff to a maximum of four staff per office. Senior lecturers and higher ranks shall have individual offices.

8.3 STAFF REGULATIONS/SCHEME OF SERVICE

The proposed institution shall have a document regulating the appointment, service, promotion, and other forms of reward as well as disciplinary procedures for staff. For employment of junior cadre, priority is given to the catchment area where the institution is sited.

8.4 PENSION MANAGEMENT

The Institution shall ensure that all its staff are registered with a Pension Fund Administrator (PFA) in compliance with National and State Pension Laws.

8.5 STUDENTS' HANDBOOK

The Institution shall provide a document containing information about admission, examination, graduation, grading, and conduct of students to be called the Student's Handbook for guidance.

8.6 HALL/AUDITORIUM

An auditorium is desirous and shall be provided. It shall be furnished, well ventilated, illuminated, and adequately equipped with a public address system, projector, screen, and other teaching aids.

9.0 SANCTIONS FOR FAILURE TO COMPLY

9.1 Any institution operating without complying with this guideline shall:

- i. Be given 7 days to comply.
- ii. Pay the sum of ₦300,000.00 as a penalty for operating after the expiration of the 7 days; and
- iii. The institution face closure for failure to comply.

10.0 FEES FOR REGISTRATION WITH THE MINISTRY OF EDUCATION

10.1 An institution shall pay a non-refundable application fee of:

- i. NCE/ND awarding institution: Three Hundred Thousand Naira (₦300,000.00) only.
- ii. HND/BSc awarding institution: Three Hundred and Fifty Thousand Naira (₦350,000.00) only.
- iii. Masters/Ph.D. awarding institution: One Million Naira (₦1, 000,000.00) only.

10.2 The institution shall pay a renewal fee of 5% of the students' tuition fee annually (subject to review by the government).

11.0 REGISTRATION OF PRIVATE TERTIARY HEALTH TRAINING INSTITUTIONS

11.1 A health training institution to be registered shall satisfy the following criteria:

- i. A joint assessment score of 70% or above by the Ministry of Education and Ministry of Health.
- ii. Evidence of registration with the Corporate Affairs Commission.
- iii. Evidence of recent accreditation with regulatory bodies of the Courses offered by the institution.
- iv. Evidence of registration with professional bodies.

11.2 An eligible institution for registration shall pay the sum of ₦300,000.00 as a registration fee, payment of which shall earn the institution a certificate of registration. Out of this, the Ministry of Education gets ₦100,000.00 for a Letter of Consent.

11.3 Renewal of registration shall be done annually. A payment of ₦150,000.00 shall be made.

11.4 Registration of an institution shall give the institution the opportunity to use public health facilities for practical experience after a written memorandum of understanding with the Ministry of Health.

11.5 The Joint assessment shall be conducted once every 3 years to ensure that standards are maintained in the institution. Institutions that fail to maintain the prescribed standards shall be de-registered, amongst other sanctions that may be imposed, which will be determined jointly by the Ministry of Health and Ministry of Education.

12.0 SECTION D: EXISTING INSTITUTIONS

12.1 Existing tertiary institutions in the State that did not follow the standard procedure shall ensure that they meet all requirements in **Section C (items 5.1 to 11.5)** before they will be allowed to continue to operate in the State.

CONTACT INFORMATION

For Enquiries, please contact:

Ministry of Education Ministry of Health

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Kaduna State Government - Ministry of Education & Ministry of Health

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